

Amendment No. 1 to HB2302

Howell
Signature of Sponsor

AMEND Senate Bill No. 2253*

House Bill No. 2302

by deleting all language after the enacting clause and substituting instead:

SECTION 1. Tennessee Code Annotated, Section 55-8-202(b), is amended by adding the following as a new, appropriately designated subdivision:

() "Automated driving system" or "ADS" and "ADS-operated vehicle" have the same meanings as defined in § 55-30-102;

SECTION 2. Tennessee Code Annotated, Section 55-8-202, is amended by adding the following as a new subsection (b) and redesignating the existing subsection (b) accordingly:

(b)

(1) A state or local law enforcement agency may establish a policy regarding methods in which to enforce traffic offenses committed by an ADS, including providing notices of violation or citations, and if such a policy is established, then the policy must align with the following:

(A) If a POST-certified or state-commissioned law enforcement officer makes a determination that a traffic offense under this chapter or chapter 9 or 10 of this title has been committed by an automated driving system, then a notice of violation or a citation must be sent by first class mail to the registered owner of the ADS-operated vehicle. A notice of violation or citation mailed to the last known address of the registered owner constitutes valid service;

(B) A notice of violation or citation must be sent within twenty (20) business days after the occurrence of the violation, absent exigent circumstances arising from registration irregularities;

(C) All notices of violations or citations must have a return address in this state and all responses and payments must be made to an address in this state. A notice of violation or citation must allow for payment of the traffic violation or citation within thirty (30) days of the mailing of the notice;

(D) An additional penalty or other costs must not be assessed for nonpayment of a traffic violation or citation issued to a registered owner of an ADS-operated vehicle unless a second notice is sent by first class mail to the owner and the second notice provides for an additional thirty (30) days for payment of the violation or citation; and

(E) The notice of violation or citation must state the amount of the fine that is being assessed for the alleged violation. The notice of violation or citation must state separately any additional fees or court costs that may be assessed if the fine is not paid timely or if the violation or citation is contested and the ADS is found to have committed the traffic offense.

(2) If a state or local law enforcement agency establishes a policy regarding methods in which to enforce traffic offenses committed by an ADS in accordance with subdivision (b)(1), and a POST-certified or state-commissioned law enforcement officer of the agency makes a determination that a traffic offense under this chapter or chapter 9 or 10 of this title has been committed by an ADS, and a notice of violation or citation is issued in accordance with the established policy, then:

(A) The registered owner may elect not to contest the charge and may, in lieu of appearance in court, submit the fine to the address provided on notice of violation or citation;

(B) If the traffic citation is not paid within the time specified, then additional fees or court costs may be assessed; and

(C) If the traffic citation is not paid and the owner appears in court at the time specified, or such later date as may be fixed by the court, and the ADS is found to have committed the traffic offense, then additional fees or court costs may be assessed.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.